

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TREVOR PROPHET,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DAVID CARDONA,
TAX ID # 960324, POLICE OFFICER JOSEPH
OTTAVIANO, TAX # 963677, POLICE OFFICER JOHN
DOE and POLICE OFFICER JOHN ROE,

Defendants.
-----X

Index No.:
Date Filed:

Plaintiff designates
Bronx County as the
place of trial.

SUMMONS

The basis of venue is
CPLR § 504(3).

Plaintiff resides at
365 E. 183rd Street
Bronx, New York 10457

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorney within 20 days after the service of the Summons, exclusive of the day of service, or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York; and in the event of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: Bronx, New York
May 10, 2019

THE BAGLEY FIRM, P.C.

Attorneys for Plaintiff
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Bronx, New York 10455
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By: 
NICOLAS BAGLEY, ESQ.

TO: ZACHARY W. CARTER, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER DAVID CARDONA, TAX ID # 960324
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOSEPH OTTAVIANO, TAX # 963677
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

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Defendants.
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Plaintiff, by his attorneys, FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

complaining of the defendants, alleges as follows upon information and belief:

1. At all times the Plaintiff TREVOR PROPHET was and is an individual residing at 365 E. 183rd Street, County of Bronx, City and State of New York.
2. At all times hereinafter mentioned, the defendant, CITY OF NEW YORK (hereinafter referred to as "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD"), was and is an agency of the defendant, CITY.
4. At all times hereinafter mentioned, the defendant, POLICE OFFICER DAVID CARDONA, TAX ID # 960324 (hereinafter referred to as "CARDONA"), was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. At all times hereinafter mentioned, the defendant, POLICE OFFICER JOSEPH OTTAVIANO, TAX ID # 963677 (hereinafter referred to as "OTTAVIANO"), was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. At all times hereinafter mentioned, the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE", was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. At all times hereinafter mentioned, the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE", was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. Upon information and belief, at all times hereinafter mentioned, several police officers including, but not limited to, CARDONA, OTTAVIANO, DOE and ROE were on duty and in the vicinity of the 48th Precinct, located at 450 Cross Bronx Expressway, County of Bronx, City and State of New York.

9. Upon information and belief, at all times hereinafter mentioned, the above-referenced Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD, as its agents, servants and/or employees.

10. Upon information and belief, defendants CARDONA, OTTAVIANO, DOE and ROE were all assigned to the 48th Precinct.

11. That on and prior to all dates and times hereinafter mentioned, CARDONA, OTTAVIANO, DOE and ROE were each individually hired, screened, tested, interviewed,

trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

12. At all times hereinafter mentioned, CARDONA, OTTAVIANO, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

13. At all times hereinafter mentioned, Plaintiff TREVOR PROPHET was lawfully in the vicinity of Webster Avenue, between E. 180th Street and E. 181st Street, County of Bronx, City and State of New York, and doing nothing illegal, unlawful or improper, or acting suspiciously in any way.

14. At all times hereinafter mentioned, in the vicinity of Webster Avenue, between E. 180th Street and E. 181st Street, County of Bronx, City and State of New York, CARDONA, OTTAVIANO, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification whatsoever, approached Plaintiff for no reason and based solely on fraud, perjury and misrepresentations, and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

15. Upon information and belief, CARDONA, OTTAVIANO, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff TREVOR PROPHET and said actions were based on fraud, perjury and misrepresentations.

16. At all times hereinafter mentioned, Plaintiff TREVOR PROPHET remained incarcerated for a period of detainment exceeding one-week.

17. Thereafter, at all times hereinafter mentioned, Plaintiff TREVOR PROPHET was arraigned and subsequently falsely and maliciously prosecuted, without having committed any crime, and was required to make numerous court appearances over an

extended period of time until all charges against him were terminated favorably.

18. Plaintiff TREVOR PROPHET sustained physical and emotional pain and injuries as a result of this incident.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF TREVOR PROPHET**

19. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "18" with the same force and effect as if fully set forth at length herein.

20. That on or about February 16, 2018, at approximately 9:30 p.m., the Plaintiff TREVOR PROPHET was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, their agents, servants and/or employees, and in particular, by CARDONA, OTTAVIANO, DOE and ROE.

21. That on or about February 16, 2018, at approximately 9:30 p.m., the Plaintiff TREVOR PROPHET while lawfully in the vicinity of Webster Avenue, between E. 180th Street and E. 181st Street, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE of having committed a crime.

22. That on or about February 16, 2018, and upon arresting the Plaintiff TREVOR PROPHET and depriving him of his liberty, CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE transported the Plaintiff TREVOR PROPHET to the 48th Precinct, in the County of Bronx and entered him on the records as under arrest.

23. That on or about February 16, 2018, the CITY, NYPD, CARDONA, OTTAVIANO,

DOE and ROE further caused Plaintiff TREVOR PROPHET to be fingerprinted and photographed without his consent, and in accordance with police procedures for the arrest of criminals, and held him on various criminal charges at various police stations, correctional facilities and the Courthouse located in the County of Bronx, City and State of New York.

24. That on or about February 16, 2018, Plaintiff TREVOR PROPHET was aware of his arrest and confinement and did not consent to his arrest and confinement; and that said arrest, confinement, seizure and detainment was without legal justification.

25. At all times hereinafter mentioned, the actions of CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

26. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
TREVOR PROPHET**

27. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "26" with the same force and effect as if fully set forth at length herein.

28. That on or about February 16, 2018, a criminal complaint was issued by the CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification, and that said complaint was filed based on fraud, perjury and misrepresentations.

29. That on or about February 16, 2018, a criminal action against Plaintiff TREVOR PROPHET was commenced by CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE,

their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

30. That solely as a result of the aforementioned actions and conduct, the Plaintiff TREVOR PROPHET'S life was interfered with.

31. That the criminal action commenced against Plaintiff TREVOR PROPHET was continued for an extended period of time by defendants with malice and bad faith.

32. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff TREVOR PROPHET, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule and embarrassment, and was degraded in the esteem of the community, both personally and professionally.

33. That the criminal action against Plaintiff TREVOR PROPHET was terminated favorably on March 16, 2018.

34. That the actions of CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

35. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF TREVOR PROPHET**

36. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "35" with the same force and effect as if fully set forth at length herein.

37. That on or about February 16, 2018, and while in the custody of the defendants in the County of Bronx, City and State New York, the Plaintiff TREVOR PROPHET was

intentionally touched, pushed, assaulted, battered, violated, humiliated, photographed and handcuffed by the CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

38. That on or about February 16, 2018, CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD, and within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff TREVOR PROPHET, insofar as they have the real and/or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff TREVOR PROPHET, and their act caused an apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff TREVOR PROPHET, and caused such battery on and about his head, neck, back, body and limbs.

39. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner, with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority, and without any probable or reasonable cause, Plaintiff TREVOR PROPHET suffered severe and permanent bodily injury on and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

40. That as a result of the aforesaid assault and battery, the Plaintiff TREVOR PROPHET was caused to sustain serious, severe, painful and permanent bodily injuries,

so that he was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of said injuries, and he was and will be prevented from attending his usual occupation and duties.

41. At all times hereinafter mentioned, the actions of CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

42. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF TREVOR PROPHET**

43. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "42" with the same force and effect as if fully set forth at length herein.

44. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including, but not limited to, CARDONA, OTTAVIANO, DOE and ROE, insofar as the foregoing police officers, as employees of CITY and NYPD, were not qualified to be hired, retained or promoted as police officers, and lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each were and are employed by CITY and NYPD.

45. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately test, analyze test results and/or investigate the above-referenced police

officers' backgrounds and performances.

46. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately screen the above-referenced police officers, failed to adequately monitor said police officers and failed to adequately discipline said police officers when they violated Patrol Guidelines.

47. Defendant CITY and NYPD were also negligent in that prior to, and at the time of, the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or, at the very least, had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, nor use excessive force during the arrest process.

48. That by reason of the above, the Plaintiff TREVOR PROPHET was injured in mind and body as he was arrested and prosecuted, and rendered sick, sore and damaged.

49. At all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

50. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF TREVOR PROPHET

51. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "50" with the same force and effect as if fully set forth at length herein.

52. In arresting Plaintiff TREVOR PROPHET, police officers including, but not limited to, CARDONA, OTTAVIANO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior motive to do harm, without justification or economic or social excuse.

53. In arresting Plaintiff TREVOR PROPHET, police officers including, but not limited, to CARDONA, OTTAVIANO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff TREVOR PROPHET or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

54. As a result of the abuse of process by defendants herein, Plaintiff TREVOR PROPHET sustained multiple injuries including, but not limited to, loss of liberty, emotional distress, humiliation, intimidation, loss of enjoyment of life, and fear for his safety.

55. At all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

56. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF TREVOR PROPHET

57. Plaintiff TREVOR PROPHET repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "56" with the same force and effect as if fully set forth at length herein.

58. At all times mentioned herein and above, defendants CITY and NYPD employed CARDONA, OTTAVIANO, DOE and ROE as police officers and the named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

59. Plaintiff TREVOR PROPHET is and was at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

60. That on or about February 16, 2018, defendants CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE without probable cause, reasonable cause or legal justification, and while effectuating the seizure of Plaintiff TREVOR PROPHET, did search, seize, assault and commit a battery and grab the Plaintiff TREVOR PROPHET without a court authorized arrest warrant or search warrant, and defendants did physically seize Plaintiff TREVOR PROPHET during the arrest process in an unlawful and excessive manner Plaintiff TREVOR PROPHET was falsely arrested and unlawfully imprisoned, and, as a result of defendants' conduct, maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

61. The above actions of defendants CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE resulted in Plaintiff TREVOR PROPHET being deprived of the following rights

under the United States Constitution: (a) Freedom from assault to his person; (b) Freedom from battery to his person; (c) Freedom from illegal search and seizure; (d) Freedom from false arrest; (e) Freedom from malicious prosecution; (f) Freedom from the use of excessive force during the arrest process; and (g) The right to Due Process of Law.

62. In addition to the above, defendants CITY and NYPD have, as a matter of policy, custom and practice, and with deliberate indifference, failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case, and any and all unnamed officers involved in the unlawful seizure and arrest of Plaintiff, regarding the protection of the constitutional rights of citizens.

63. Defendants CITY, NYPD, CARDONA, OTTAVIANO, DOE and ROE subjected Plaintiff TREVOR PROPHET to such deprivation in a malicious, reckless, deliberate, intentional and grossly negligent manner and with a callous disregard of Plaintiff TREVOR PROPHET'S rights, and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

64. The direct and proximate result of the defendants CITY's, NYPD's, CARDONA's, OTTAVIANO's, DOE's and ROE's conduct are that Plaintiff TREVOR PROPHET has suffered severe and permanent injuries and a loss of liberty and companionship, and has been forced to endure pain and suffering, emotional distress and severe and significant damage to his standing and reputation in the community.

65. That by reason of the foregoing, Plaintiff TREVOR PROPHET has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

CONDITIONS PRECEDENT

66. On May 16, 2018, and within 90 days after the claim herein arose, Notice of Claim and Demand for Adjustment of Damages was duly served upon the CITY OF NEW YORK.

67. At least 30 days have elapsed since the claim was presented to defendant CITY OF NEW YORK and adjustment or payment thereof has been neglected or refused.

68. On August 20, 2018, the plaintiff complied with the defendant CITY OF NEW YORK's demand for an examination pursuant to 50-h of the General Municipal Law.

69. This action is being commenced within one-year and ninety-days after the happening of the event upon which the claim is based.

WHEREFORE, plaintiff demands judgment against the defendants, on the First Cause of Action through the Sixth Cause of Action, for a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter together with costs, interest, punitive damages and disbursements of this action.

Dated: Bronx, New York
May 10, 2019

THE BAGLEY FIRM, P.C.
Attorneys for Plaintiff
391 E 149th Street, Suite 205A
Bronx, New York 10455
Tel: (718) 705-7999
Fax: (718) 744-2727

By: 

NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of **THE BAGLEY FIRM, P.C.**, attorneys of record for plaintiff. I have read the annexed

VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff is currently outside of the county wherein your affirmant maintain an office.

Dated: Bronx, New York
May 10, 2019


NICOLAS BAGLEY